

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 28, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR: Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Collins, and pursuant to support received by Mr. Allen and Dr. Rinne, agenda item #17 was removed from the Consent Agenda. Upon request by Mr. Allen, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #25(e) was removed from the Consent Agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes"-- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 14, 2011. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body.

Mayor Kaysen opened a public hearing to receive comments and input for gathering information on possible projects for the inclusion on the 1% Specific Purpose Sales Tax election ballot, which has been scheduled for August 21, 2012. He reviewed guidelines (identical to those utilized at the November 14th public hearing) that would be in place for those wishing to provide comments during the public hearing, which included a 5 minute time limitation per speaker, and announced that City Council would be hosting additional public meetings to receive input on proposed projects on December 1, 18 and 20 beginning at 6:00 p.m. in Council Chambers. Ms. Ash moved to appeal to remove the imposition of the guidelines, as previously reviewed, for the conduct of the public hearing, seconded by Mr. Spiker. Discussion followed on the purpose of the guidelines, time limit for speakers, importance of projects to the community, and more public hearings and meetings being scheduled on proposed 6th penny projects than in the past. Motion failed due to lack of an affirmative majority vote. Voting "yes" -- Mr. Allen, Ms. Ash, Ms. Broyles, Mr. Collins and Mr. Spiker. Voting "no" -- Mr. Brown, Dr. Rinne, Mr. Pierson, Mr. Valdez and Mayor Kaysen. Carol Matteson Pascal spoke in support of the Greenway Expansion project, noting past efforts and achievements involving greenway paths; staffing; advisory council; Friends of the Greenway Foundation; grant funding; community path usage, and the need to continue with path connections/expansions and to provide funding for capital improvements and maintenance. Matt

Pope spoke in support of a Recreation Center, stating his belief that there is a lot of community support for the project and noting that the City has expended a financial investment for planning of the project in the past. He advised he would be providing more detailed project information at the City Council's December 1st public meeting. Bob Clary commented in favor of the Landfill Expansion project at the current Happy Jack site and provided information on the review, evaluation and recommendations made by a past Landfill Advisory Council, of which he was a member, involving options for an extended or newly developed landfill site; DEQ coordination; financial considerations affiliated with hauling of solid waste to Colorado, and keeping the Belvoir Ranch property in mind as a backup option. He noted the project involves a new landfill disposal cell which would extend the current life of the landfill by 30 years. Rich Cummings, Cheyenne Gymnastics Parent Booster Club, spoke in support of an expansion to the City's gymnastics program through two options, either adding the facility to the City-owned Ice and Events Center or including an area for the program in a new Recreation Center. He provided information on the Club's efforts to alleviate costs of the competitive program, program growth and need for additional physical space, and expressed concern with the future of the program relative to lack of facility space and possible future non-availability of the Neighborhood Center. Kim Maes, Director of Senior Programs, Cheyenne Housing Authority, spoke in support of a new Senior Center and provided information on meal services, program activities and services provided to seniors in the community. She stated more space is needed due to the growing number of senior participants and programs offered; commented on the age of the current center and maintenance repairs and affiliated costs, and indicated preference for the facility at or near the current location if possible. Barbara Stafford, member, Cheyenne Botanic Gardens Foundation, spoke in favor of the Botanic Gardens Conservatory project and provided information on the proposed project. She advised she would be providing more detailed project information at the City Council's December 1st public meeting. Christie DePoorter, Executive Director, Downtown Development Authority, spoke in support of the downtown 17th Street Pedestrian Lighting and Beautification project, noting downtown beautification and enhancement benefits will include lighting and streetscape elements, and stating that the project will assist with promotion of further usage of the area and support private financial redevelopment investments currently taking place in the downtown. Renee Lone Elk commented in support of a new Senior Citizen Center and the volume of senior citizens in the community who will benefit from senior programs and expanded facilities. Adrian Perry spoke in support of the Capitol Basin Flood Control project, citing the need for drainage improvements and noting the project will also provide an opportunity for public green space amenities. Jim Lambert also spoke in support of the Capitol Basin Flood Control project to alleviate downtown drainage concerns and provide benefits to downtown. Joey Marchand, member, Mayor's Youth Advisory Council, spoke in support of the Botanic Gardens Conservatory project, noting educational benefits to youth, needed infrastructure improvements and benefits of the current facility and its programs. Tanvir Dhami, member, Mayor's Youth Advisory Council, commented in support of improvements at Johnson Pool benefitting that area of the community as well as providing youth activities. During the public hearing, Edward Melko commented on the Landfill Expansion project vs. the Belvoir Ranch as a future landfill site and funding utilized to acquire the ranch, and suggested consideration of a regional landfill to serve other communities in the area in addition to the City. In separate comments, he stated proposed projects should be compiled from the aspect of a "needs list not a want list" and offered comments in support of the Capitol Basin Flood Control project and Public Safety Administration (Police and Fire) Building project. During the public hearing, James Perrott MacNeil commented on his

concerns involving ownership of the Belvoir Ranch area and in opposition of ranch property being used for landfill purposes. In separate comments he expressed his concerns with the current national and international financial and economic conditions and future uncertainties that may affect ballot question voter results. Following input and comments from those in attendance, Dr. Rinne, City Council President, advised of planned presentations on proposed projects to be heard at the December 1st public meeting hosted by City Council. Upon inquiry, Mayor Kaysen reviewed the process being utilized by the City as well as the governments of Laramie County and the Towns of Albin, Burns and Pine Bluffs that would result in a recommended 1% Specific Purpose projects list from each respective entity with a total proposed ballot dollar amount for placement on the election ballot. Purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated at 5618 Townsend Place and described as the North 170 feet of Tract 6, Briney Tracts, Laramie County, Wyoming (generally located at the southwest corner of Townsend Place and east Carlson Street). Reporting for Public Services Committee, Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Upon inquiry Stacey Dierisch, representing her mother who owns the property being annexed, clarified the Board of Public Utilities provided them an early permit to install water and sewer lines, but advised they will not be connected until approval of the annexation. Motion carried. Voting “yes” -- all members of the governing body.

Ordinance amending an existing PUD Ordinance, “Appendix #1” of the Cheyenne and Laramie County Zoning Ordinance 1988, for Block 5, Mountview Park, and that portion of the vacated right-of-way of East 19th Street as vacated under Ordinance No. 2001, Cheyenne, Wyoming (located at the southeast corner of the intersection of East Pershing Boulevard and Converse Avenue) (“Cole Shopping Center”). Gary Harrison, Concepts West Architecture, representative for the applicant, Safeway, Inc., provided information regarding the proposed zone change conditions for the property, explaining Safeway is interested in purchasing the property for future development, including construction of new buildings, and that current PUD conditions restrict where new buildings may be placed. He generally reviewed Safeway’s site development plan elements, including building design to conform with the City’s “big box” criteria, buffering, setbacks, landscaping, parking and lighting, and indicated the seller of the property has requested the proposed ordinance be conditioned for effectiveness upon the sale of the property being closed. Mr. Harrison discussed Safeway’s plans for the site, advising property redevelopment plans involve an estimated \$20 million dollar investment, and noted the importance of a timely decision on the City’s proposed roundabout intersection configuration adjacent to the property as it affects the site plan that will be submitted and the construction schedule. Upon inquiry, Mr. Harrison confirmed no height limit requirements were included in the amending ordinance and that it had been discussed with staff, noting a two-story (new Safeway) building was planned, and that the topic of allowing electronic signs may be discussed further with staff. Discussion followed on whether height requirements for buildings and addressing the topic of allowing electronic signs should be included in the ordinance, and possible roundabout configuration changes affecting the site. Terry Kunz, Safeway representative, clarified Safeway would be open to working with the City regarding a proposed roundabout design as it will affect some of the property area and project construction timing. Danny James suggested an alternative to the currently proposed roundabout design through utilization of a counter clockwise route, controlled by traffic lights, with Mayor Kaysen requesting he share the

information, including a map depiction as prepared and referenced by Mr. James, with the City Engineer. Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Comments followed regarding a decision on the roundabout configuration to assist in moving Safeway's redevelopment project forward in a timely manner. Mr. Collins moved to amend wording in Section #5. contained in the ordinance to replace the current wording with language that indicates the zone change will be applicable contingent upon the sale of the property, and adding Section #6. which would contain prior Section #5. wording that indicates that the ordinance shall be in full force and effect upon its publication, seconded by Ms. Ash. Upon inquiry, Dan White, City Attorney, advised, pursuant to request by the property owner and Safeway representatives to have the zone change be contingent upon sale of the property, that he had legally reviewed the issue and discussed with planning and development staff and that it is permissible to state the sale of property as a condition to the effectiveness of the ordinance. He stated he planned to submit proposed amending language for consideration by the parties and submit at the next Public Services Committee meeting. Mr. Collins withdrew his motion to amend with concurrence by Ms. Ash as second to the motion. Motion to approve on second reading carried. Voting "yes" -- all members of the governing body.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from MR-1 Medium Density Residential – Established District to MUB Mixed Use with Business Emphasis District for Lots 5, 6 and the west 44-feet of Lot 7, Block 110, Original City, Cheyenne, Wyoming (located at the northeast corner of the intersection of Warren Avenue and E. 25th Street). Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Motion carried. Voting "yes" -- all members of the governing body.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from LR-2 Low Density Residential – Developing District to NB Neighborhood Business District for Lot 6, Block Three, and Lot 6, Block Four, Sundance Ridge II, Cheyenne, Wyoming (located north of Storey Boulevard, on either side of Sycamore Road). Dr. Rinne declared a conflict of interest (nearby property owner interest) and vacated Council Chambers. Rick Hunnicutt, President, Western Development Corporation, and representative of DLH Trust, property owners, stated the owners had determined the best use of the property would be for commercial purposes, such as professional services offices, in addition to townhouses. Concerns were expressed regarding the elevation of a dirt pile due to soil grading in the area. Mr. Hunnicutt advised storm water drainage plans had been submitted, and commented that landscaping and a drainage retaining wall will be implemented in the dirt pile area with the goal of having the area look more like the west side of the project. Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Comment followed on possible restriction of the type of commercial business use to be allowed either through covenants or zoning. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Dr. Rinne returned to Council Chambers.

Resolution determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the NE1/4 of Section 1, T.13.N., R.67W. of the 6th P.M., Laramie County, Wyoming (generally located north of and adjacent to West Lincolnway and

east of and adjacent to the BNSF Railroad). Mr. Collins moved to adopt, seconded by Ms. Ash. Concern was expressed relative to the ability to sustain more hotels in the area and future uses. Motion carried. Voting “yes” -- all members of the governing body. (#5329)

[CA] Resolution authorizing the City staff to issue a Request for Proposals for design and permitting of an expansion to the Happy Jack Landfill. Motion (per Consent Agenda) carried. (#5330)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for GDC Subdivision, being portions of Section 1, T.13N., R.66W., Section 6, T.13N., R.65W., Section 31, T.14N., R.65W., Section 36, T.14N., R.66W., 6th P.M., and a replat of a portion of the right-of-way of HR Ranch Road, JL Ranch, Cheyenne, Wyoming (located south of Interstate 80, west of Campstool Road). Mayor Kaysen declared a conflict of interest (family financial interest) and relinquished duties of the chair to Council President Rinne, and vacated Council Chambers. James Perrott MacNeil spoke in opposition to annexation of the property. Mr. Collins moved to adopt with staff recommendations #1 and 2, seconded by Ms. Ash. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mayor Kaysen returned to Council Chambers with Council President Rinne returning duties of the chair to Mayor Kaysen. (#5331)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Anderson Corner, Third Filing, a replat of a portion of Lot 3, Block 1, and 20' Walkway & Drainage R/W (right-of-way), Anderson Corner, Second Filing, Cheyenne, Laramie County, Wyoming (located south of Mason Way, between Grandview and Converse Avenues). Motion (per Consent Agenda) carried. (#5332)

Resolution acknowledging receipt of and approving the Interchange Enhancement Design Guidebook prepared by Tom Cobb, P.E. and Nolte Associates, Inc. for the Cheyenne Metropolitan Planning Organization. Mr. Collins moved to adopt, seconded by Ms. Broyles. Mr. Collins moved to postpone for two weeks (to Dec. 12, 2011), seconded by Mr. Allen. John Palmer questioned the reason for postponement and it was advised postponement would provide additional time to review the document. Discussion followed on review of the guidelines and that the guidelines will provide consistency within the community for design concepts. Comments of concern were made with entitlement wording of the resolution with regard to “approving” the guidebook, and whether the word “supporting” would be more applicable for a resolution vs. ordinance document. Motion to postpone failed. Voting “no” -- all members of the governing body. Mr. Collins moved to amend the resolution entitlement to substitute the term “approving” with “supporting” and also making the same change in the Now, Therefore, Be It Resolved paragraph, seconded by Mr. Brown. Comments followed on the proposed amendment; bridge designs following the same criteria, and concern with supporting a past I-180 bridge design, as depicted on the cover of the guidebook, and the governing body’s reflection of support for the guidebook to WYDOT. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Ms. Ash voting “no”. Main motion as amended carried. Voting “yes” -- all members of the governing body with the exception of Ms. Ash voting “no”. (#5333)

Following a ten minute recess, Mayor Kaysen reconvened the meeting at 8:10 p.m.

Resolution determining that the sale of real property owned by the City of Cheyenne, Wyoming would benefit the economic development of the City pursuant to Wyo. Stat. § 15-1-112(b) and authorizing the Mayor to sign a purchase and sale agreement and a development agreement with Menard, Inc. for the sale of 23.87 acres of City-owned land platted as Lot 2, Block 1, Cahill Park Addition (located at the southeast corner of the intersection of Windmill Road and Dell Range Boulevard, Cheyenne, Wyoming). Matt Ashby, Planning Services Director, noted the resolution includes a purchase and sale agreement to sell the property to Menard, which includes provisions of the purchase and sale specifications, and a development agreement, which describes the conditions under which the property would be developed, including public infrastructure. He briefly reviewed the proposed sales amount (cash value to the City); public infrastructure areas and value; construction and development value; estimated number of jobs the development project will bring to the community; and possibility of a Menard distribution center in the future. Mr. Ashby advised, pursuant to previous discussions, that a recent site selection report indicates a downtown location is the recommended preferred option for a proposed new police headquarters. Dan White, City Attorney, stated the County Commissioners have executed an unconditional quitclaim deed conveying to the City all of the County's right, title and interest in Section 28 so the City now has unconditional title to the entirety of Section 28. He advised the title insurance company has reviewed the deed and has cleared that particular matter from the title insurance commitment so the City has the ability to convey a clear and marketable title to Menard should the sale move forward. John Palmer questioned placement of the resolution on the agenda as a consent agenda item. Mayor Kaysen explained the process utilized for placing agenda items on the Consent Agenda (i.e. unanimous approval of recommendation from Finance Committee members) and how items are removed. Scott Nuttleman, Menard representative, referenced previous information he discussed at the November 14th City Council meeting and briefly reiterated Menard's interest in doing business in Cheyenne through purchase of the property; community and infrastructure benefits affiliated with commercial development of the site; proposed construction schedule; potential outparcel uses, and potential for a future Menard industrial distribution center. Jeanne Tucker questioned the wisdom of bringing another big box store of this type to Cheyenne which could adversely affect current businesses in the community. James Perrott MacNeil expressed his concerns with the proposed sale to Menard and the current economic situation; questioned the VA (Veterans Administration) manager's authority to waive property use restrictions, and commented on the County's relinquishing its interest in the property. Upon inquiry, Mr. White reviewed information pertaining to use of the property as affiliated with the VA's involvement and use requirements, and clarified the VA had submitted a letter clearing the proposed sale to Menard for the uses identified. Tim Dryden, Cheyenne Girls Softball Association a/k/a Extreme Fast Pitch, a traveling competitive program, spoke in support of the sale, expressing interest that the funds from the sale be used to build a championship quality field at the Converse Softball Complex, and discussed benefits to the league and the community that would be derived from having a championship field, including the ability to host tournaments. Reporting for Finance Committee, Mr. Valdez moved to adopt, seconded by Mr. Collins. Comments followed on typographical errors that should be corrected in printed dollar amounts that had been noticed in the Purchase and Sale Agreement as well as the Development Agreement; use of the property for public vs. commercial use; envisioned truck traffic route to access the site; response to the RFP (Request for Proposal) that was issued and RFP process concerns;

informal property appraisal information; due diligence; sales proceeds benefitting parks and recreation facility improvements and projects; whether proceeds could be considered for use toward the downtown fire site as a pocket park; property site being an area involving low potential residential growth, and remaining adjacent open space still available to the City if the sale was approved. During comments, Mr. Ashby and Mr. Nuttleman provided information on proposed truck traffic routes, and Mr. Ashby advised he was not aware of any other business expressing an interest in the property since the RFP was advertised last spring. Mayor Kaysen stated that proposed use of proceeds toward a pocket park at the downtown fire site would need to be looked into. Motion carried. Voting “yes” -- all members of the governing body with the exception of Mr. Allen, Dr. Rinne and Mr. Valdez voting “no”. (#5334)

[CA] Resolution authorizing the City of Cheyenne, through the City Attorney’s Office, to commence condemnation proceedings to obtain real property located at 1900 Converse Avenue necessary for the completion of the East Pershing Boulevard Reconstruction Project (Phase 4) (2003-2006, 2007-2010 1% Sales Tax). (Postponed from Oct. 24, 2011) -- referred to Finance Committee.

[CA] Resolution authorizing the submittal of an application to the Wyoming State Loan and Investment Board for a \$3.0 million loan from the State Revolving Fund for the City of Cheyenne Hydroelectric Generation Facility Project and authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to sign all loan documents (Drinking Water State Revolving Fund) -- referred to Finance Committee (sponsor - Ms. Ash).

[CA] Resolution approving Outside User Water/Sewer Services, by User’s Agreement, with Swan Ranch Properties, LLC, Lot 2, Block 1, Swan Ranch Rail Park, 3rd Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution certifying that the Governing Body of the City of Cheyenne approves of the Pine Bluffs projects to be submitted to the State Loan and Investment Board for the 2011 Countywide Consensus Block Grant funding -- referred to Finance Committee (sponsor - Dr. Rinne).

[CA] Resolution supporting the City of Cheyenne’s application for a Land and Water Conservation Fund Grant for the Martin Luther King Park Tennis Court Project -- referred to Finance Committee (sponsor - Mr. Valdez).

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Sundance Ridge II, a replat of Lots 1-6, Block 1, and Lots 1-6, Block 2, Sundance Ridge I, Cheyenne, Wyoming (located north of Storey Boulevard, on either side of Sycamore Road) -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] Resolution authorizing the City of Cheyenne, Wyoming, to lease, with an option to purchase sanitation, recycling and landfill equipment (Solid Waste fund) -- referred to Finance Committee (sponsor - Mr. Brown).

[CA] Juvenile Accountability Block Grant Contract between the City of Cheyenne, Office of Youth Alternatives, and Wyoming Department of Family Services, Division of Juvenile Services, for partial

funding of Municipal Juvenile Court staffing and pretrial services. Motion (per Consent Agenda) carried. (#5777)

[CA] Memorandum of Agreement between the Cheyenne Fire Department and Federal Aviation Administration (FAA) providing guidance for emergency response services to the FAA. Motion (per Consent Agenda) carried. (#5778)

[CA] Lease Agreement between the City of Cheyenne and Little America Hotels and Resorts, Inc. for placement of a billboard advertising sign. Motion (per Consent Agenda) carried (\$1,000.00 annual revenue to the City). (#5779)

[CA] Professional Services Agreement between the City of Cheyenne, Metropolitan Planning Organization, and Felsburg Holt and Ullevig for a study titled '8th Avenue Corridor Plan'. Motion (per Consent Agenda) carried (federal funds). (#5780)

Professional Services Agreement between the City of Cheyenne and Ayres Associates for the Downtown Cheyenne Lower Capitol Basin Brownfield Project. Mr. Valdez moved to approve, seconded by Mr. Brown. Comment was made in support of the project with reference to past surface drainage election ballot questions that had failed. Motion carried. Voting "yes" -- all members of the governing body. (#5781)

[CA] Grant of non-exclusive easement to Suncor Energy Pipeline Company for a parcel of real property located in a portion of Section 21, 22, and 27, T.14.N, R.66W., City of Cheyenne, Laramie County, Wyoming -- referred to Finance Committee.

[CA] Contract Modification #1 to Contract #5707 between the City of Cheyenne and Aztec Construction Co., Inc., for additional construction services for the Snyder Avenue Stormwater Pipeline Project (2007 - 2010 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$14,923.22). (#5707)

Contract Addendum to Contract #5614 between the City of Cheyenne and WINhealth Partners for City employee health coverage. John Palmer questioned a change to drop retiree coverage over the age of 65. Judi Just, Accounting Office, explained the reasons for the change, citing the cost of high premiums that have resulted in no employees electing coverage in recent years. Mr. Valdez moved to approve, seconded by Mr. Pierson. Mr. Valdez moved to amend by re-inserting the following language in #8: "Elected and appointed officials who have served two or more consecutive terms, defined as 8 consecutive years, and are age 50 or more when they leave office," seconded by Mr. Pierson. Upon request, Carol Intlekofer, City Clerk, restated wording of the proposed amendment. Discussion included the recommendation from Finance Committee to re-insert the proposed amendment language that has been in past contracts for years, and how the age of 50 was determined as the base age. Ms. Just explained the age of 50 is consistent with the Wyoming Retirement System guidelines, which require someone to be at least age 50 before they can retire. Motion to amend carried. Voting "yes" -- all members of the governing body with the exception of Ms. Ash voting "no." Upon inquiry, Steven Goldstone, President/CEO of WinHealth Partners, advised if the age of 50 was dropped there may be, actuarially, a theoretical risk having an

adverse effect on costs to the City, and that on a short term basis it would probably be minimal. Mr. Pierson moved to amend #8 by striking the following language at the end of the sentence: "... and are age 50 or more when they leave office.", seconded by Ms. Broyles. Barb Dorr, City Treasurer, reviewed early retirement employee options offered in the past which also indicated the retirement age of 50; provided information pertaining to the firefighters contract, which states they have to be at least age 50 before they can receive retirement, and clarified retirees pay 100% of the premium but the fact they are in the pool reflects the overall rate the City pays. Further discussion followed on the proposed amendment and the City's retirement policy. During discussion, Ms. Just provided information on related elements involving the state retirement program. Ms. Broyles moved to postpone two weeks (to Dec. 12, 2011), seconded by Mr. Pierson. Comments followed in opposition to postponement. Motion to postpone failed. Voting "yes" -- Ms. Broyles. Voting "no" -- Mr. Allen, Ms. Ash, Mr. Brown, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Motion to amend failed. Voting "no" -- all members of the governing body. Main motion carried. Voting "yes" -- all members of the governing body. (#5614)

[CA] Consideration of Bid #R-14-12 for furnishing four Dell Precision T3500 computers and 31 Dell 780 mini tower computers for the Cheyenne Police Department. Motion (per Consent Agenda) carried (accept bid from Dell Marketing, L.P., Round Rock, TX in an amount not to exceed \$35,880.50).

[CA] Consideration of Bid #R-15-12 for furnishing one new 2011-2012 ½ ton pickup for the City of Cheyenne, 1% Construction Division, from Spradley Barr Motors of Cheyenne (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-16-12 for furnishing two new 2011-2012 4x4 light duty compact pickup trucks for the City of Cheyenne, Parks and Recreation Department, from Spradley Barr Motors of Cheyenne (2011 - 2014 1% Sales Tax) -- referred to Finance Committee.

[CA] Restaurant liquor license application filed with the City Clerk's Office for The Peak Cafe II, LLC d/b/a The Peaks Cafe II at the Airport, 300 E. 8th Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Reappointment of Rolfe Burgess to the City Planning Commission. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Appointment of Jim Rose and Shauna Lacey to the City Planning Commission. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Appointment of Tyler Bedwell, Kadi Davis, Tanvir Dhami, Ian Dome, Addie Fleming, Juliette Givhan, Dean Jackson, Joey Marchand, John Matsen, Robert McGarry, McKinzea Olsen, Jacob Peterson, Gary Sayler and Margarita Medrano, to the Mayor's Youth Council. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of the Appointment of Charis Kepper to the Art in Public Places Committee; J. Terry Williams to the Cheyenne Housing Authority Board; Joe Patterson to the Contractor Licensing Board; Stephanie Lowe and Wesley Peterson to the Historic Preservation Board; April Matthie to the Housing & Community Development Advisory Board; Barbara Schutkowski-Fortish and Connie Hand to the Mayor's Council for People with Disabilities; Francis J. Dennis to the Public Transit Advisory Board, and Sue E. Mecca to the City of Cheyenne Personnel Commission, to be confirmed December 12, 2011.

Announcement was made of the Re-Appointment of John Lyttle and Marcia Mead to the Art in Public Places Committee; Nicole Novotny Smith, Beverly Bowman and Jody K. Malm to the Board of Adjustments; Joel McKee and Keith Fox to the Building Code Board of Appeals; Mark Walter to the Contractor Licensing Board; Mark Hardee to the Fire Civil Service Commission; Rick Ammon, Wendy Owen and Belinda Kolb to the Historic Preservation Board; Stephen M. Ganison, Carol Slane, Khale Lenhart and Lorna H. Sanders to the Housing & Community Development Advisory Board; Pete Illoway to the Cheyenne Airport Board; Russ Pollard to the Police Civil Service Commission, and Rita Watson to the City of Cheyenne Personnel Commission, to be confirmed December 12, 2011.

Announcement was made of the Appointment of Lois A. Huff as City Treasurer for the City of Cheyenne, to be confirmed December 12, 2011.

Announcement was made of a Public Meeting, hosted by the Cheyenne City Council, to be held Thursday, December 1, 2011 from 6:00 to 9:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, on possible projects for inclusion on the August 21, 2012 1% Specific Purpose Sales Tax election ballot.

Under other City business:

Upon request, City Clerk Carol Intlekofer read the following announcement for the record: Announcement of a Public Meeting to be held Thursday, December 8, 2011 starting at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to receive input and comments for gathering information on possible projects for the inclusion on the August 21, 2012 1% Specific Purpose Sales Tax election ballot.

John Palmer commented on the following topics: County elected officials representing citizens; Council member conflict of interest concerns; proposed Safeway purchase of Cole's property and redevelopment plans and timing of same relative to the roundabout project and proposed eminent domain action involving the former Hollywood Video business property.

Councilperson Broyles stated a constituent had requested she raise the question of whether meetings on the proposed UDC (Unified Development Code) scheduled in December could be moved to January so the meetings don't conflict with holiday schedules.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 9:41 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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